

GIFFIN v VASCONCELLOS

23CV46905

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AGREEMENT

On August 28, 2023, Robin Giffin ("Plaintiff") filed a Complaint against Steven Crane Vasconcellos ("Vasconcellos"), Sierra View Financial Corp. ("SVFC"), and County of Calaveras ("County") seeking orders for partition, accounting, injunctive relief, and declaratory relief. Now before the Court is a second motion to enforce the settlement agreement filed by Plaintiff.

On July 28, 2025, the Court held a mandatory settlement conference. At that conference, the parties represented that a settlement had been reached but that Plaintiff no longer agreed to the terms of that agreement. Consequently, the Court and the parties modified the terms of the agreement at the conference. Pursuant to the new settlement agreement, Plaintiff would deposit a check in the amount of \$20,000 with the title company and once those funds were deposited, Vasconcellos was to vacate the property by January 12, 2026. The formalized, CCP 664.6-enforceable settlement agreement was filed.

On August 22, 2025, the Court held a hearing on Plaintiff's ex parte motion to enforce the settlement agreement. Counsel for Plaintiff and Vasconcellos both attended the hearing. At the conclusion of the hearing, the Court ordered Vasconcellos to sign the grant deed once the funds had been deposited. In the event that Vasconcellos refused to sign the deed, the Court ordered that Vasconcellos' then-counsel, Mitchell Abdallah, sign the deed as elisor.

Thereafter, Mr. Abdallah was relieved as counsel for Vasconcellos. According to Plaintiff, "Mr. Abdallah maintains that once he was relieved as counsel for Mr. Vasconcellos, that Mr. Abdallah was also relieved of executing the transfer as ordered in paragraph 3 of the court's August 26, 2025, order and will not do so." (Mtn to Enforce p. 2.) Vasconcellos apparently also continues to refuse to sign the deed, despite the fact that Plaintiff has completed all requirements with the title company.

Plaintiff now seeks an order from the Court requiring Mr. Abdallah to comply with the previous order and sign the deed or to appoint Robin Giffin, Jr. to do so.

The Court has the inherent authority to enforce its own orders. (Code Civ. Proc. § 128.) Pursuant to those powers, the Court may take necessary steps to compel obedience to its orders and judgments, including appointing an elisor¹ to execute the documents on Vasconcellos behalf. (*Blueberry Properties, LLC. V. Chow* (2014) 230 Cal.App.4th 1017, 1020.) The Court had fully expected that all necessary documents would have been prepared and that Mr. Abdallah therefore would have signed as elisor prior to his being relieved as counsel. Unfortunately, this did not occur. The Court feels it would be unfair to require Mr. Abdallah as former counsel to serve as elisor, and appointment of plaintiff's son in this role is potentially problematic.

Therefore, the Court **GRANTS** plaintiff's motion but appoints the clerk of court to act as elisor in this matter, to complete and sign the deed, and any other documents necessary to complete the terms of the settlement agreement. This Order supersedes the Court's previous order appointing Mr. Abdallah as elisor. Plaintiff is required to contact the Court CEO in advance to schedule an appointment for the signing of documents and also must bring a notary public to the Court for any such signing appointment.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

¹ "An elisor is a person appointed by the court to perform functions like the execution of a deed or document. (*Blueberry Properties, LLC. V. Chow* (2014) 230 Cal.App.4th 1017, 1020.)

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lee (aka Lavina) Richie ("Defendant.")

Now before the Court is Plaintiff's motion to compel responses Form Interrogatories (General), Set One ("FROGS.") Plaintiff also seeks sanctions. The motion is unopposed.

I. Procedural History

On September 15, 2025, Plaintiffs propounded FROGS on Defendant. (Declaration of Justin Swierczek ("Swierczek Decl.") ¶ 3, Ex. A.) Responses were due thirty-five days thereafter, on October 20, 2025. (Code Civ. Proc. § §2030.260(a) and 1013(a).) As of the filing of the Motions on November 5, 2025, Defendant had not responded. Defendant has, however, filed her own discovery propounded on Plaintiffs – a meaningless filing for the Court absent any associated motion.

II. Legal Standard and Discussion

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, then:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: